

24STCV27759 24STCV27759

County: los-angeles

Division: Civil Law and Motion

Department: 414

Hearing date: 2026-09-18

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Case Number: 24STCV27759 Hearing Date: September 18, 2026 Dept: 414

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Tenor Health Partners, LLC v. Pipeline Health System Holdings, LLC

Friday,

September 18, 2026

[TENTATIVE] ORDER GRANTING MOTION FOR LEAVE TO AMEND AND FILE FIRST
AMENDED COMPLAINT (8384)

I.

BACKGROUND

This action arises from Defendant's alleged failure to purchase Plaintiff's assets pursuant to the parties' letter of intent. Plaintiff alleges contract-related claims, fraud, and declaratory relief.

Plaintiff requests leave to file a first amended complaint to add a claim for conversion and to clarify allegations regarding the written letter of intent for the purchase and sale of a hospital in Dallas, Texas. The amendment will clarify the failure of required conditions. The conversion claim arises from the same set of alleged facts. After Defendant sold the hospital to a third party, Defendant failed to return Plaintiff's \$250,000 deposit. The amendment clarifies how Defendant did not comply with the requirements of the contract's exclusivity period.

Defendant argues the delay is unreasonable and unexplained. Defendant will suffer prejudice. If the Court grants the

motion, Defendant asks the Court to continue trial and reopen discovery.

II. LEGAL STANDARDS

The court can permit amendment of any

pleading on any terms and “in other particulars” as may be proper. (Code Civ.

Proc., § 473(a).) The court’s discretion will usually be exercised liberally to

permit amendment of the pleadings. (*Nestle v. City of Santa Monica* (1972) 6 Cal.3d 920, 939.) If the motion is timely made, and

the granting of the motion will not result in prejudice to the opposing party,

it is error to refuse permission to amend. (*Morgan v. Superior Court of Cal. In and For Los Angeles County* (1959) 172 Cal.App.2d 527, 530.) Amendments are liberally permitted

up to the date of trial or during trial where no prejudice is shown. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761.)

III. DISCUSSION

Plaintiff

did not make this motion earlier because the parties were engaged in discovery from March through August of 2025. (Felton decl., ¶4.) Each party’s deposition was taken in October and November of 2025. (Id.) The parties attempted to resolve the dispute through mediation on March 4, 2026 but were unsuccessful (Id. ¶ 5.) Plaintiff then met and conferred with Defendant regarding the amendment, but on May 12, 2026, Defendant informed that it would not stipulate to an amendment. (Id. ¶ 5.) Plaintiff then filed this motion on June 8, 2026.

Defendant’s

contention that it will suffer prejudice because it will have to engage in discovery and potentially follow-up discovery regarding the new claim is unpersuasive. Notably, the opposition concedes that “[t]his case has always been about one failed hospital acquisition, one non-binding letter of intent, and one \$250,000 deposit.” (Opp. 1:2-3.) Given the deposit has always been at issue in the parties’ dispute, there is no basis for continuance of trial at this stage. The trial is currently set for November 2, 2026. However, Defendant is not without remedy as it can move to continue trial and reopen discovery upon making the required showing.

Defendant’s

argument that Plaintiff has reversed position is not a basis for denying the motion. The original complaint alleged the date that the 30-day exclusivity

period began. The amended pleading proposes to identify other conditions for when the 30-day period began; the allegations are additional not contradictory.

Regardless,

this argument and other arguments that Plaintiff proposes “reversals” of prior allegations do not affect the liberal policy to permit amendments absent prejudice to the opposing party. To the extent the “reversals” render the proposed pleading defective, the court does not consider the validity of the amendments at this stage. The “better course is to allow a plaintiff to amend the complaint and then let the parties test its legal sufficiency in other appropriate proceedings.” (Brown v. Ralphs Grocery Co. (2018) 28 Cal.App.5th 824, 843.)

V. CONCLUSION

Based

on the foregoing, Plaintiff’s motion for leave to file an amended complaint is GRANTED. Plaintiff is ordered to file the amended pleading within 10 days.